

BOODE v. DE PERALTA et al

21CV45714

MOTION TO BE RELIEVED AS DEFENSE COUNSEL

This is an action to establish record of an unwritten easement between adjoining lands. Before the Court this day is a motion by defense counsel to withdraw.

An attorney may withdraw as counsel of record if the client breaches the agreement to pay fees, insists on pursuing invalid claims or an illegal course of conduct, or when other conduct by the client renders it unreasonably difficult for the attorney to do his job, including when there is a breakdown in the attorney-client relationship. If the attorney does not have the client's consent, he or she must proceed by way of noticed motion consistent with CCP §§ 284 and 1005, CRPC 1.16 and CRC 3.1362. The motion must be verified, must utilize the designated Judicial Council forms MC-051 – MC-053, and must set forth sufficient detail to permit a trial court to discharge its duty of inquiry regarding the grounds for the motion. (See *Flake v. Neumiller & Beardslee* (2017) 9 Cal.App.5th 223, 230; *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1134-1136; *Aceves v. Superior Court* (1996) 51 Cal.App.4th 584, 592-593.)

Counsel indicates that there has been “an irremediable breakdown” between counsel and clients; while this is but a conclusion, not a proffer of evidentiary facts in “sufficient detail” supporting the request to withdraw, this Court takes a very liberal approach to accepting attorney's assertions of breakdowns with clients at face value.

However, counsel has not adequately demonstrated proper service. All papers in support of the motion must be served on the client *and all parties*. With regard to service on the client, it must be personally delivered or mailed to the client's “current” address (as confirmed within last 30 days). CRC 3.1362(d)(2) requires the attorney to serve the papers on the client at an address which was *actually confirmed* to be accurate within the preceding 30 days. If address cannot be confirmed, and counsel can show due diligence, service can be made to the client's last known address and on the clerk of the court. (CCP §1011(b) and CRC 3.252.) Here, counsel indicates that there was return receipt received from the referenced address, but no copy was provided. Separately, counsel indicates that the address was confirmed via “the attorney client agreement,” which is insufficient since that agreement was presumably signed at least four months ago when counsel first appeared in the action. Moreover, no proof of service as to plaintiff has been provided.

In addition, CRC 3.1362(e) requires counsel to lodge a proposed order with the motion, and there is no proposed order lodged.

Finally, a proper motion to withdraw may be denied when it is reasonably foreseeable that the client would suffer prejudice, such as when the unrepresented client would be unable to fairly respond to dispositive motions. (CRPC 1.16(d); *Mossanen v. Monfared* (2000) 77 Cal.App.4th 1402, 1409.) Here, counsel concedes that the clients are already delinquent in responding to the Second Amended Complaint. Since no answer has ever been filed, the clients are potentially in a position to be defaulted. Counsel cannot depart the case under such precarious circumstances without first protecting the clients from harm.

Motion DENIED WITHOUT PREJUDICE to refiling. The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to prepare formal Orders pursuant to Rule of Court 3.1312 in conformity with these rulings.

FOSTER v. IRBC2 PROPERTIES LLC et al
21CV45573

DEFENSE DEMURRER TO FAC; MOTION TO EXPUNGE

This is a wrongful foreclosure case. The operative pleading herein is the First Amended Complaint filed 08/22/22, which contains the following seven (7) causes of action: wrongful foreclosure; cancellation of instruments; slander of title; intentional and negligent infliction of emotional distress; unfair business practices; accounting; and declaratory relief. Before the Court are the following motions, which were previously stayed pending resolution of a related action in bankruptcy court:

1. Motion to expunge lis pendens filed by defendant IRBC2 Properties;
2. Demurrer by:
 - a. Orion Financial and Connie Riggsby (1st – 5th COAs);
 - b. IRBC2 Properties and Park Tree Investments (1st – 4th COAs);
 - c. FCI Lender Services (1st – 7th COAs);
 - d. Real Time Resolutions (6th COA); and
 - e. 2005 Residential Trust 3-2 by Wilmington Savings Fund Society (1st – 7th COAs).

Despite a rather sizable stack of papers, there is but one central issue in this litigation, to wit: did California TD Specialists have legal authority to conduct a nonjudicial foreclosure sale of plaintiff's residence by Wilmington Savings Fund Society FSB on behalf of 2005 Residential Trust 3-2. Because the issue falls within a narrow, and presently underdeveloped, area of law, a detailed review of the averments is necessary to determine if in fact plaintiff has adequately stated any claim sufficient to survive the present pleadings.

Background Facts (as alleged and deduced from incorporated exhibits)

On or about 08/08/02, plaintiff acquired via grant deed, for a reported \$25,000, a half-acre lot in the Copper Cove subdivision of Copperopolis, overlooking Lake Tulloch, designated APN 067-022-005, and commonly referred to as 4928 Pueblo Trail, Copperopolis, California (hereinafter "subject property"). Soon thereafter, plaintiff completed construction thereon of a 2,831 square foot residence with four bedrooms and 3 bathrooms, using funds he borrowed from IndyMac Bank. The amount of the loan is unknown, but according to plaintiff there was a balance of roughly \$256,000.00 when the foreclosure occurred.

On or about 07/06/06, plaintiff secured a home equity line of credit from Countrywide Bank in the amount of \$450,496.00 (designated as *Loan No 9160017686*). The note for